# CRIME AND PUNISHMENT

**THE CENTRAL QUESTION OF — CONDITIONS OF RESPONSIBLE PUNISHMENT — THE RETRIBUTIVE ARGUMENT: DESERT — DETERRENCE AND INCAPACITATION WEIGHED — REFORM, DIGNITY AND THE — THE THREE-QUESTION GRID AND**

Read the thick cyan rail from Stage 00 to the final cone synthesis. Each card uses a concept-appropriate structure; the grey E card is optional enrichment only and never repeats missing core content.

● PRIMARY CORE FLOW ● SUBORDINATE EXTRA ◆ APPROVAL / REVIEW

CORE BEFORE EXTRA • prior artefacts unchanged • exact same master drives poster and tiles

Approval: FALSE • Pending user review • source generation g3 and all prior artifacts unchanged

## 00 STAGE 00 — THE CENTRAL QUESTION OF THE CLAUSE AND THE THREE DOORS FROM WRONG TO PUNISHMENT

WRONG, CRIME, PUNISHMENT ARE THREE DOORS · FIVE-GATE CRIMINALISATION FILTER · VALIDITY DOES NOT PROVE JUSTICE · LEGAL, MORAL AND SOCIOLOGICAL ACCOUNTS · OVERLAP IS THE PARADIGM, NOT THE WHOLE · ABHORRENCE IS NOT A LICENCE TO PUNISH

### THE QUESTION THE CLAUSE ACTUALLY ASKS

- When, and on what terms, may a political community turn a wrong into a crime and attach punishment to it?
- Wrongdoing, criminalisation and punishment are three separate steps with three separate justifications.
- Abhorrence at the conduct licenses none of the three by itself.

### CRIME AND MORAL WRONG: THE THREE REGIONS

- Law only: an unjust statute criminalises morally innocent conduct.
- Overlap: murder and theft are legal and moral wrongs at once, and this is the paradigm.
- Wrong only: a grave moral wrong the criminal code has never reached.

### THE FIVE-GATE CRIMINALISATION FILTER

- Harm, rights, public wrong, culpability and proportionality operate in series, not as a checklist.
- Failing any single gate defeats criminalisation however strongly the conduct is disliked.
- Clearing all five leaves the justification of punishment entirely untouched.

**MECHANISM / VERDICT —** Positive law fixes the rule, the moral account tests its justice and the sociological account exposes its bias, so criminalisation must clear five gates of its own.

**ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Wrongdoing, criminalisation and punishment are three doors with three different keys, and the standard failure is to open the third by pointing at the room behind the first.**

## 01 STAGE 01 — CONDITIONS OF RESPONSIBLE PUNISHMENT AND THE CLASSIFICATION OF THE FIVE THEORIES

HARD TREATMENT PLUS AUTHORITATIVE CENSURE · SEVEN ENABLING CONDITIONS · CULPABILITY IS GRADED, NOT A SWITCH · FIVE THEORIES, FIVE CENTRAL TESTS · CONDITIONS CONSTRAIN, THEY DO NOT CHOOSE · CAUSAL CONTRIBUTION IS NOT RESPONSIBILITY

Define punishment as hard treatment plus censure

Check the seven enabling conditions in order → Grade culpability rather than switching it on → Separate responsibility from causal contribution

### WHAT PUNISHMENT IS, PRECISELY

- Hard treatment together with authoritative censure, imposed by a competent public authority for a proved breach.
- Public, proportionate, impartial and rule-governed, which is exactly what private vengeance is not.

### SEVEN CONDITIONS OF RESPONSIBLE PUNISHMENT

- Law known in advance, voluntary act or relevant omission, culpability graded by intention, knowledge, recklessness and negligence.
- Fair procedure and reliable proof, a competent and impartial authority, proportionality, and equal application without status bias.
- Responsibility is not causal contribution: one may contribute without knowledge or control, and an official may be responsible for culpable omission.

### FIVE THEORIES BY TEST AND BY DANGER

- Retributive desert and deterrent prevention are the two poles; incapacitation adds necessity and risk.
- Reformative reintegration and restorative repair complete the field.
- Each theory carries its own danger: vengeance, instrumentalisation, indefinite custody, paternalism and unequal bargaining.

**MECHANISM / VERDICT —** Legality, voluntariness, graded culpability, reliable proof, impartiality, proportionality and equal application constrain every candidate theory without choosing among them.

**ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Punishment is not revenge with paperwork: public, proportionate and impartial hard treatment on a responsible agent under rules known in advance is a different institution altogether.**

## 02 STAGE 02 — THE RETRIBUTIVE ARGUMENT: DESERT AS GROUND AND AS CEILING

DESERT IS GROUND AND CEILING · MAXIM, AGENCY, DENIAL, RESPECT · KANT: NEVER A MERE INSTRUMENT · HEGEL: ANNULMENT OF THE WRONGFUL CLAIM · MAXIMISING AGAINST LIMITING FORM · RETRIBUTION IS NOT VENGEANCE

The crime asserts a maxim against equal right → Imputable agency makes the offender answerable → Proportionate response publicly denies the maxim → Denial expresses respect for right, not revenge → Limiting retributivism caps rather than demands

### THE FOUR-STEP RETRIBUTIVE ARGUMENT

- The crime asserts a maxim incompatible with equal right, and imputable agency makes the offender answerable for it.
- A proportionate legal response publicly denies that maxim rather than repaying the injury.
- The denial therefore expresses respect for right and for the offender's standing as a responsible agent.

### KANT AND HEGEL, DOING DIFFERENT WORK

- Kant: punishment answers the culpable act, and the offender is an end who may not be used merely as an instrument of deterrence.
- Hegel: punishment is the annulment of the crime's wrongful claim, restoring right while taking the offender seriously.

### THE RIGHTS OBJECTION AND THE LIMITING REPLY

- Objection: suffering does not undo suffering, so desert alone cannot show why the state should add pain.
- Reply: limiting retributivism forbids punishment without desert and beyond desert rather than demanding it.
- Residual limit: the limiting form supplies no positive general justifying aim of its own.

**MECHANISM / VERDICT —** An imputable act asserts a maxim against equal right, and a proportionate public denial of that maxim is what distinguishes penal justice from private retaliation.

**ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Retribution is not vengeance made respectable: the offender's own act, and not the community's appetite for suffering, fixes both the ground and the ceiling of the sanction.**

## 03 STAGE 03 — DETERRENCE AND INCAPACITATION WEIGHED ON THE SAME AXES

REASONS AGAINST OPPORTUNITIES · CERTAINTY OUTRANKS SEVERITY · FOUR PRESUPPOSITIONS OF THE THREAT · SPECIFIC AND GENERAL DETERRENCE · SECURE CUSTODY ALSO INCAPACITATES · DETERRENT EFFECT IS CONTESTED

| AXIS | DETERRENCE | INCAPACITATION |
|---|---|---|
| TARGET | the offender's practical reasoning about cost | the offender's opportunity to act at all |
| MECHANISM | a known, certain and prompt credible threat | physical restraint or legal disqualification |
| CENTRAL TEST | expected prevention net of collateral harm | necessity and a defensible judgment of risk |
| WHERE IT FAILS | liability it permits punishing a known innocent | duration: indefinite or discriminatory confinement |
| ON THE DEATH PENALTY | the comparative effect is empirically contested | secure imprisonment already achieves the same end |

### TWO ARGUMENTS, TWO TARGETS

- Deterrence operates on the offender's practical reasoning about perceived costs.
- Incapacitation operates on opportunity and bypasses the offender's reasons altogether.

### PRESUPPOSITIONS THAT MUST BE STATED

- Persons respond to perceived costs, and sanctions are known and sufficiently certain.
- Preventive benefit exceeds direct and collateral harm, and less harmful alternatives are inadequate.
- Certainty and promptness of sanction outrank severity as levers of prevention.

### WHERE THE CLASSIC OBJECTION LANDS

- Pure deterrence permits convicting a known innocent where the preventive yield is high enough.
- Rule-utilitarian legality and due process reply; the rejoinder is that protection then rests on a calculation.
- Comparative deterrent effect is an empirical controversy and must never be reported as settled.

**MECHANISM / VERDICT —** Prevention through credible threat and prevention through restraint rest on different presuppositions, so each has to carry its own justification in an answer.

**ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Deterrence works on the offender's reasons and incapacitation works on his opportunities, so an argument that succeeds for one has not yet succeeded for the other.**

## 04 STAGE 04 — REFORM, DIGNITY AND THE TWO PROPORTIONALITY DIMENSIONS FOR JUVENILES

MORE THAN THE WORST ACT · CAPABILITY, NOT DEGRADATION · ORDINAL AND CARDINAL PROPORTIONALITY · OFFENCE-CENTRED AGAINST OFFENDER-CENTRED · NATURE OF THE CRIME IS NOT CONCLUSIVE · REFORM IS NOT LENIENCY

Persons are more than their worst act → Agency can be impaired and rebuilt → Use capability rather than degradation → Rank ordinally, then fix the cardinal anchor → Integrate offence-centred and offender-centred views

### THE DIGNITY ARGUMENT IN FOUR STEPS

- Persons are more than their worst act, and responsible agency can be impaired and rebuilt.
- A humane state reduces future wrongdoing through restored capability rather than degradation.
- Punishment must therefore preserve a route back into membership.

### TWO DIMENSIONS OF PROPORTIONALITY

- Ordinal proportionality ranks offences against one another.
- Cardinal proportionality fixes how severe the whole penal scale may be.
- The juvenile case turns on the cardinal anchor once reduced agency lowers culpability.

### JUVENILES AND THE BOUNDING CONDITIONS

- Seriousness of harm, intention and understanding, developmental capacity, susceptibility to influence, prospects of reform and procedural reliability.
- The nature of the crime is relevant but not conclusive, and the two perspectives are integrated rather than ranked.
- Rehabilitation stays bounded by the proportionate band, consent where possible, periodic review and rights.

**MECHANISM / VERDICT —** Ordinal ranking fixes relative seriousness while the cardinal anchor fixes the scale, and reduced juvenile agency lowers the deserved point on that scale.

**ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Reform is not leniency: it accepts responsibility and proportionate restraint, and adds only that a state which closes the route back has punished the person rather than the offence.**

## 05 STAGE 05 — THE THREE-QUESTION GRID AND THE MIXED OR LIMITING THEORY

AIM, LIABILITY, AMOUNT · DESERT AS A SIDE-CONSTRAINT · THE PROMISE-KEEPING ANALOGY · PREVENTION IN AIM, DESERT IN CONSTRAINT · EVERY OBJECTION ACQUIRES AN ADDRESS · ONE ANSWER TO THREE QUESTIONS FAILS

| QUESTION | WHAT IT ASKS | BEST ANSWER | THEORY THAT FALLS HERE |
|---|---|---|---|
| Q1 GENERAL JUSTIFYING AIM | why should the institution exist at all? | forward-looking prevention, protection and restored security | pure retributivism |
| Q2 DISTRIBUTION AND LIABILITY | whom may we punish, and on what condition? | desert: proved guilt, a voluntary act, graded culpability | pure deterrence |
| Q3 AMOUNT AND SEVERITY | how much punishment is permissible? | proportionality: ordinal ranking and a cardinal ceiling | pure deterrence |
| THE COMBINED RESULT | how do the three answers fit together? | a mixed theory, consequentialist in aim and retributivist in constraint | any theory giving one answer to all three |

### THREE QUESTIONS THAT MUST BE SEPARATED

- Q1 asks why the institution of punishment should exist at all.
- Q2 asks whom we may punish and on what condition.
- Q3 asks how much punishment is permissible.

### THE SEPARATION ARGUMENT

- An institution may be justified by its general benefit while its applications follow an independent principle of fairness.
- The point of a promise-keeping practice differs from the rules deciding who is bound by a particular promise.
- Prevention therefore supplies the aim while desert supplies the side-constraint.

### WHAT THE GRID BUYS THE ANSWER

- Punishing the innocent is an objection to deterrence at Q2, not at Q1.
- Why the state must inflict suffering is an objection to retributivism at Q1, not at Q2 or Q3.
- The presupposition that aim and application can come apart is exactly what a pure retributivist denies.

**MECHANISM / VERDICT —** An institution may be justified by its general benefit while its application follows an independent principle of fairness, which is ordinary institutional reasoning rather than an evasion.

**ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Retribution and deterrence stop being rivals once one notices that prevention explains why the institution exists while desert explains whom it may touch and how far.**

## 06 STAGE 06 — EXPRESSIVE, COMMUNICATIVE AND RESTORATIVE THEORIES COMPARED

CONDEMNATION SEPARATES PUNISHMENT FROM PENALTY · HARD TREATMENT AS SECULAR PENANCE · STANDING TO CALL TO ACCOUNT · EXPRESSIVE, COMMUNICATIVE, RESTORATIVE · REINTEGRATIVE AGAINST STIGMATISING SHAMING · FOUCAULT IS GENEALOGY, NOT JUSTIFICATION

| AXIS | EXPRESSIVE (FEINBERG) | COMMUNICATIVE (DUFF) | RESTORATIVE |
|---|---|---|---|
| DIRECTION | one-way condemnation about the offender | a two-way address to the offender | relational among victim, offender and community |
| THE OFFENDER IS | the object of an authoritative judgment | a rational participant capable of answering | an active participant expected to repair |
| AIM | authoritative denunciation of the wrong | repentance, self-reform and reconciliation | reparation, restitution and reintegration |
| HARD TREATMENT IS | the vehicle that makes censure credible | a secular penance focusing attention on the wrong | measured by what repair actually requires |
| ANSWER-SIDE TEST | would compensation alone have sufficed? | has this polity the standing to demand penance? | is participation voluntary, safe and undominated? |

### WHAT MAKES PUNISHMENT MORE THAN A PENALTY

- A parking fine and a conviction both impose hardship; only the second carries authoritative reprobation.
- This explains why wrongful conviction is a distinct wrong, why degrading punishment is objectionable apart from severity, and why acquittal is a vindication.

### FROM EXPRESSION TO ADDRESS TO REPAIR

- Duff converts one-way expression into a two-way address, with hard treatment as secular penance.
- The standing condition makes penal legitimacy conditional on the justice of the order that punishes.
- Restorative process asks who was hurt, what they need and whose obligation it is to repair.

### MECHANISM, LIMIT AND THE CRITICAL CAVEAT

- Reintegrative shaming condemns the act and keeps the route back; stigmatising shaming condemns the person and is criminogenic.
- Restorative process is conditionally appropriate: voluntariness, prior safety and no entrenched domination.
- Foucault supplies a genealogy of penal power and never a normative justification, and names no technology or state.

**MECHANISM / VERDICT —** Hard treatment makes condemnation credible, the same burden addressed to a citizen becomes secular penance, and reintegrative disapproval preserves the bonds that give censure force.

**ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Condemnation supplies the meaning of punishment, communication its address to the offender and restoration the repair of harm, which is why retribution against reform is a false alternative.**

## 07 STAGE 07 — CORRUPTION: ENTRUSTED POWER, PARTICULARISM AND THE SYSTEMIC-ETHICAL VERDICT

MISUSE OF ENTRUSTED POWER · PARTICULAR LOYALTY INSIDE A UNIVERSAL ROLE · TRUST, IMPARTIALITY, RULE OF LAW, AGENCY · ETHICAL DIAGNOSIS AGAINST SYSTEMIC · AN ETHICAL ACT IN A SYSTEMIC ECOLOGY · NO REGIME IS AUTOMATICALLY IMMUNE

Name the entrusted power that was misused → Trace trust, impartiality, law and civic agency → Set particular loyalty against the universal role → Diagnose character and structure together → Close on the ethical act in a systemic ecology

### WHY CORRUPTION IS A DISTINCTIVE WRONG

- Misuse of entrusted public or institutional power through partial, concealed or improperly exchanged advantage.
- Wider than bribery: favouritism, nepotism, embezzlement, regulatory capture and abuse of discretion.
- It breaches fiduciary trust, violates impartiality, injures the rule of law and reduces citizens to supplicants.

### PARTICULARISM INSIDE A UNIVERSALIST ROLE

- Personal relations generate genuine duties, and public office is entrusted for a specified common purpose.
- Corruption occurs when a legitimate particular loyalty is acted upon inside a role governed by universal criteria.
- The remedy is role boundaries, conflict-of-interest rules and recusal, not the abolition of loyalty.

### THE SYSTEMIC-ETHICAL VERDICT

- Ethical diagnosis targets character; systemic diagnosis targets opacity, monopoly, discretion and impunity.
- The defensible position is that corruption is an ethical act inside a systemic ecology.
- No regime type is automatically immune, and the enacted Indian frameworks settle no ethical question.

**MECHANISM / VERDICT —** Office creates fiduciary obligations, so acting on a legitimate particular loyalty inside a universalist role converts loyalty itself into the wrong of corruption.

**ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Corruption is distinctive not because of what it costs but because power held in trust was turned to partial use inside a role that was created to be impartial.**

## 08 STAGE 08 — MASS VIOLENCE: MECHANISMS AND THE FIVE KINDS OF COLLECTIVE RESPONSIBILITY

ORGANISATION MULTIPLIES ORDINARY AGENCY · DEHUMANISATION AND MORAL EXCLUSION · ARENDT ON THOUGHTLESSNESS · FIVE KINDS OF COLLECTIVE RESPONSIBILITY · GUILT INDIVIDUAL, RESPONSIBILITY COLLECTIVE · INHERITED GUILT IS REJECTED OUTRIGHT

Organisation multiplies ordinary agency

Dehumanisation withdraws ordinary restraints → Bureaucracy routinises harm as role-performance → Differentiate responsibility across the roles

### MECHANISMS THAT LOWER THE THRESHOLD

- Dehumanisation, moral exclusion and diffusion of responsibility withdraw ordinary restraints from an out-group.
- Obedience, bureaucracy, polarisation, propaganda and the security dilemma routinise participation.
- Arendt's thesis about thoughtlessness concerns the psychology of perpetration, never the degree of guilt.

### FIVE KINDS OF COLLECTIVE RESPONSIBILITY

- Criminal guilt attaches to individuals; organisational liability attaches to bodies with real decision procedures.
- Political responsibility grounds duties of reparation, memory and reform for citizens collectively.
- Responsibility for omission is graded by knowledge and capacity; inherited or metaphysical guilt is rejected outright.

### RELIGIOUSLY FRAMED VIOLENCE: THREE SEPARATIONS

- A tradition's texts and a movement's political use of them are not the same object.
- Communal violence, pogrom and genocide differ in structure and evidentiary requirement, not merely in scale.
- Victims may be selected by religious identity for instrumental political reasons, so the marker is not the motive.

**MECHANISM / VERDICT —** Dehumanisation, moral exclusion, diffusion of responsibility and bureaucratic routine lower the threshold at which ordinary agents participate in organised harm.

**ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Mass violence is distinctive because organisation multiplies ordinary agency, which is why guilt must stay individual while responsibility is differentiated across every role.**

## 09 STAGE 09 — GENOCIDE: LEMKIN'S COINAGE, THE 1948 CONVENTION AND THE NEIGHBOURING CATEGORIES

DESTRUCTION OF A GROUP AS SUCH · SPECIFIC INTENT, INFERRED FROM PATTERN · LEMKIN 1944, CONVENTION 1948 · GENOCIDE AGAINST CRIMES AGAINST HUMANITY · A FORM OF SHARED LIFE IS DESTROYED · NOT EVERY MASSACRE IS GENOCIDE

Lemkin coins the term in 1944 → The Convention is adopted in 1948 → It enters into force in 1951 → Specific intent against four protected categories → Distinguish it from the neighbouring categories

### HOW THE CONCEPT WAS CONSTRUCTED

- Lemkin coined genocide in Axis Rule in Occupied Europe in 1944, from Greek genos and Latin -cide.
- He conceived it as a coordinated plan aimed at destroying the essential foundations of the life of a group.
- The 1948 Convention entered into force in 1951 and requires specific intent against four protected categories.

### WHY THE EXTRA CATEGORY IS NEEDED

- Victims are attacked as members of a group marked for destruction, and generational continuity is targeted.
- The additional wrong is the destruction of a form of shared life, which counting murders does not capture.
- The perpetrator claims the power to decide which human plurality may continue to exist.

### PRECISION THE EXAMINER REWARDS

- The adopted text is narrower than Lemkin's conception, and political groups are not protected categories.
- Genocide, crimes against humanity, war crimes and generic mass violence are four distinct categories.
- Specific intent may be inferred from a pattern of conduct, but moral outrage cannot substitute for evidence.

**MECHANISM / VERDICT —** Where the aim becomes the destruction of a group's shared life rather than the harming of its members, the wrong changes in kind rather than merely in degree.

**ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Genocide is not a very large massacre: what makes it a distinct wrong is that the continued existence of a group, and the shared life that sustains it, was itself the target.**

## 10 STAGE 10 — CAPITAL PUNISHMENT: THE ARGUMENT TREE, OBJECTIONS AND REPLIES

IRREVERSIBLE, AND IT REMOVES THE AGENT · THE CUSTODY DISTINCTION · BACHAN SINGH 1980 IS A JUDGMENT · REPORT 262 OF 2015 IS ADVISORY · DESERT AGAINST DIGNITY AND FALLIBILITY · NECESSITY FAILS AFTER CONTROL · DETERRENCE HERE IS NOT SETTLED

### THE ARGUMENT TREE, BOTH SIDES AT FULL STRENGTH

- For: desert for the gravest culpable killing, incapacitation, and public affirmation of the equal value of victims.
- Against: fallibility and irreversibility, dignity, unequal administration, and the foreclosure of reform.
- The deterrence branch is empirically contested on both sides and must be flagged rather than asserted.

### THE CUSTODY DISTINCTION

- A right may be fundamental without being exceptionless, and it yields to a present unjust threat.
- Execution follows custody and adjudication, when less final means of incapacitation are already available.
- The defensive permission therefore does not transfer, and the abolitionist case runs through necessity.

### THE INDIAN ILLUSTRATIONS, CORRECTLY CLASSIFIED

- Bachan Singh v. State of Punjab (1980) is a Supreme Court judgment that retained the penalty with the rarest of rare limitation.
- Law Commission of India Report No. 262 (2015) is an advisory report recommending abolition for ordinary crimes, excluding specified terrorism-related and war contexts.
- Each is a dated legal fact and never a philosophical proof.

**MECHANISM / VERDICT —** Immediate defence answers a present unjust threat while execution follows custody and adjudication, so the defensive permission does not transfer to the custodial case.

**ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: The decisive move on any death-penalty stem is the custody distinction: a right that yields to an ongoing unjust threat has not yielded to a calm decision about a restrained person.**

## 11 STAGE 11 — INTEGRATED ANSWER SPINE, DIRECTIVE DECODER AND THE GRADED VERDICT BANK

SEPARATE, ADJUDICATE, CONDITION · THE DIRECTIVE FIXES THE STRUCTURE · FOUR STANDING DEBATES · VALIDITY, IMPLEMENTATION, EMPIRICAL EFFECT · SEVEN GRADED VERDICT FAMILIES · A SURVEY IS NOT AN ANSWER

Decode the directive before the topic → Name the penal question actually at issue → Adjudicate one live rival, not four → Classify the illustration correctly → Close with a conditional graded verdict

### FOUR STANDING DEBATES

- Kant against Bentham: desert against prevention, backward against forward, sanctified suffering against instrumentalised persons.
- Retribution against reform is a false alternative once desert sets the upper limit and reform works inside it.
- Arendt against monster theories, and particular loyalty against public impartiality, complete the field.

### THE DIRECTIVE DECIDES THE STRUCTURE

- Explain gives internal logic: discuss aids one adjudicated tension; critically examine makes objection and reply the answer.
- In X justified separates the three questions; In X a form of Y states Y's conditions before applying them.
- Do you agree demands a qualified commitment at the outset rather than a survey.

### THE UNIVERSAL SPINE AND THE GRADED VERDICT

- Name the penal question, separate Q1, Q2 and Q3, state the strongest rival, work one objection with its reply and residual limit.
- Add one correctly classified illustration and close with a graded verdict that names its conditions.
- Separate philosophical validity from implementation and from empirical effect: that separation is the marked move.

**MECHANISM / VERDICT —** Identifying which penal question is being asked converts a shapeless survey into an adjudication, and the graded verdict then states the conditions under which it holds.

**ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Marks in this clause are carried not by the catalogue of theories but by separating the justifying question, adjudicating one live rival and stating the conditions of the verdict.**

## E EXTRA — SUBORDINATE ENRICHMENT — ONLY AFTER THE COMPLETE CORE

OPTIONAL ENRICHMENT, NEVER A PREREQUISITE · COMMUNICATIVE AND RESTORATIVE ARE ALREADY CORE · COERCIVE DELIVERY OF CENSURE · DOES RESTORATION SCALE TO MASS CRIME? · COMMAND AND STRUCTURAL RESPONSIBILITY · NO STATISTICS, NO CONVENTION LISTS

### WHAT REMAINS GENUINELY OPTIONAL

- Whether censure-communication can be coercively delivered without collapsing into hard treatment justified on other grounds.
- Whether restorative practice scales to grave and mass crimes, and how it interacts with victim inequality.
- Abolition against tightly constrained retention of the death penalty, once the Core moral justifications and rights objections are already secure.

### THE ADVANCED OBJECTION AND ITS REPLY

- Restorative or communicative models can underplay the moral seriousness of grave wrongs and fail victims who need public denunciation.
- The best restorative view is not anti-censure: it preserves condemnation while refusing vengeance as the sole mode of justice.
- It is strongest exactly where reintegration and differentiated responsibility matter most.

### WHAT IS ALREADY CORE, AND WHAT NOT TO OVER-STUDY

- Communicative punishment and restorative justice were promoted into the Core, so only their residual questions belong here.
- Collective and command responsibility sharpens the genocide and mass-violence analysis beyond the minimum, and is the next promotion candidate.
- Do not collect crime statistics, prison data or convention lists, and do not turn genocide into a historical catalogue; keep theory first.

**OPTIONAL STATUS —** This optional depth is unnecessary for a competent core answer; use it only for added nuance after the complete core has been written.

END OF MASTER CANVAS • poster embeds this exact master • tiled pages are overlapping crops of the same pixels